

Where irregularities involving the declaration, underpayments of duty or goods subject to prohibition or restriction are found, and the goods are liable to be detained, the officer is to place the goods formally under detention by issuing a Detention Notice (Form C&E No 125). Provided fraud is not suspected and that a written undertaking as to non-disposal of the goods is received, they may be conditionally released for storage in the premises pending regularisation.

Container seals found broken

Where the seals are found to have been broken or removed, an explanation is to be sought from the carrier and, if necessary, from the importer. Discharge of the container under close supervision may be permitted and discrepancies found investigated. If an irregularity is found, the officer is to report the incident to the import office as soon as possible. The import office is also to be contacted where clarification relating to the sealing of the container is necessary. Even where no irregularity is found the incident is to be noted in import office records on the hard-copy declaration. Administrative penalties should be considered where appropriate.

Merchants Requests

All official attendances given at private premises are to be charged for in accordance with Merchants' Requests standing instructions. After examination of goods and container, C&E 1021 is to be endorsed 'attendance given', completed and returned to the import office with the hard-copy declaration. Charges for official attendance are to be raised on Form C&E 200 or on a Period Request in the normal manner. Charges may be accounted for at the import office if arrangements can be made.

7.1.11 Special arrangements for the importation of excisable products destined for another Member State through the EMCS

Where goods liable to excise duty are imported from outside the EU an electronic customs declaration should be submitted to AIS in the normal manner and Customs Duty paid. The payment of Excise Duty and VAT may be suspended. Procedure code 4200 should be used and an onward movement through the Excise Movement and Control System (EMCS) should be implemented. A MRN will be assigned and it will be routed orange for documentary check against the EMCS. A Registered Consignor must then submit an e-AD to the EMCS with the MRN and if in order an ARC (e-AD reference code) will issue. Customs will then carry out a documentary check and compare the EMCS declaration with the AIS declaration. If all is in order the goods may be released for onward movement under the EMCS. All containers should be secured using the consignor's seals and must be kept intact until arrival at the warehouse.

For documentary checks, import stations will require read-only access to the EMCS application. For further information on the EMCS see the [EMCS Trader Guide](#).